

**PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR AUGUST 27, 2026, AT 8:30 A.M.**

Here, defendant's answer admits all of the statements in the complaint were true except for a challenge to the service of summons. However, the court subsequently denied defendant's motion to quash, service of summons is not an element of plaintiff's common counts cause of action, and the complaint states facts sufficient to constitute the common counts cause of action. Accordingly, plaintiff's motion for judgment on the pleadings is granted.

2. M-CV-0096560 ELGUINDY, MEYER & KOEGEL v. EVOLUTION COM

The motion to strike answer is dropped from calendar in light of the notice of settlement of entire case filed with the court on August 13, 2026.

3. M-CV-0097661 IH4 PROPERTY WEST LP v. ROUNDTREE, LOREN

Application for Further Stay of Execution of Judgment

Appearance of the parties is required on **August 27, 2026 at 8:30 a.m. in Department 3.**

4. S-CV-0047960 NOVAK, CHRISTOPHER v. THOMPSON, GREGORY

Plaintiffs' Motion for Reconsideration of Plaintiffs' Motion for Relief From Order

Plaintiffs move for the court to reconsider its May 11, 2026, ruling denying plaintiffs' motion for relief from order.

First, the motion is procedurally defective because it does not identify any new or different facts, circumstances, or law. (Code Civ. Proc., § 1008, subd. (a).)

Second, even if the court considered the merits of the motion, the discretionary relief provision does not provide plaintiffs their requested relief. Notably, "the discretionary relief provision of section 473 only permits relief from attorney error fairly imputable to the client, i.e., mistakes anyone could have made. [Citation.] Conduct falling below the professional standard of care, such as failure to timely object or to properly advance an argument, is not therefore excusable. To hold otherwise would be to eliminate the express statutory requirement of excusability and effectively eviscerate the concept of attorney malpractice." (*Zamora v. Clayborn Contracting Group, Inc.* (2002) 28 Cal.4th 249, 258.) Here, plaintiffs' counsel missing the statute of limitations is not imputable to the client and falls below the professional standard of care.

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Accordingly, plaintiffs' motion for reconsideration is denied.

Defendants' request for sanctions is denied.

Motion for Relief

The motion for relief is dropped from calendar as no moving papers were filed with the court.

5. S-CV-0051131 FERREIRA, RITAJEAN v. FLYERS ENERGY

Plaintiff's Motion for Preliminary Approval of Class and Representative Action Settlement and Provisional Class Certification for Settlement Purposes Only

The unopposed motion is granted. The court has broad discretion in determining whether a class action settlement is (1) fair and reasonable, (2) the class notice is adequate, and (3) certification of the class is proper. (*In re Cellphone Fee Termination Cases* (2010) 186 Cal.App.4th 1380, 1389.) Further, the court reviews the moving papers along with the entirety of the court file to determine that the settlement is genuine, meaningful, and consistent with the underlying purposes of the PAGA-related statute. (Labor Code section 2699(s); *O'Connor v. Uber Technologies, Inc.* (N.D. Cal. 2016) 201 F.Supp.3d 1110.) The court must also determine whether the PAGA settlement appears fundamentally fair, reasonable, and adequate. (*Ibid.*)

The court has carefully reviewed and considered the Class and PAGA Settlement Agreement and plaintiff's moving papers filed in connection with the motion. The court determines a sufficient showing has been made that the class action settlement is fair, reasonable, genuine, meaningful, and adequate. The court also determines the settlement is fair, reasonable, genuine, and consistent with the purpose of PAGA.

For the purposes of the settlement, the court hereby certifies the class as defined on page 3, paragraph 1.5 of the Class and PAGA Settlement. The court preliminarily approves the Class and PAGA Settlement and Class Notice. The court approves the proposed form of the notice, and incorporates by reference the findings and orders outlined in the proposed order lodged with the court on June 11, 2026.

The final approval hearing is set for **Thursday, January 28, 2027, at 8:30 a.m.** in **Department 3.**